

25SMCV04336 25SMCV04336

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This is a motion to dismiss the action by defendants. The case arises from defendants' earlier plan to make and sell certain electric vehicles under the name Afeela. The vehicles would be sold directly to the public and not through Honda's franchisees.

Plaintiff is an association of dealers that includes Honda's franchisees, and plaintiff asserts that this program violates California law. However, a funny thing happened on the way to the forum. Defendants have apparently abandoned the Afeela program.

They state that they no longer have any plans to manufacture or sell the vehicle and that the vast bulk of people associated with the project have been let go, with the rest to follow shortly.

Accordingly, defendants contend that the original complaint is now moot, and that the request for prospective relief is not ripe. Plaintiff states that defendants will not commit that the abandonment of the Afeela program is permanent, and therefore they state that they still need at least prospective relief, and accordingly they oppose the motion. The court agrees with the defense, and the motion is GRANTED.

The case will be dismissed, obviously not on the merits.

Preliminarily, the court DENIES defendant SHMA's request for judicial notice of the press articles.

They are offered not for proof that they exist, but for proof of the truth of the statements therein. That is not proper. Plaintiff's request for judicial notice of various government websites and legislative history is GRANTED. The court has DISREGARDED the new evidence in reply, as it was not necessary to the resolution of this motion. As to extrinsic evidence, the

court disagrees with plaintiff. It is true that an MJOP (which is how this is framed) is a pleading motion and the court cannot go outside of the complaint except as to matters subject to judicial notice. But this is an odd sort of motion. The claim is mootness/ripeness. It is not a merits motion in the way most MJOP motions are. The court believes that it has inherent authority to go outside the four corners of the complaint to make that determination. Indeed, in a sense the matter is jurisdictional. The court has no jurisdiction to make decisions absent a live controversy. In a jurisdictional motion, the court can take evidence going to the jurisdictional question. That is essentially the situation here. The court also notes that plaintiff does not dispute any of the claims made in the moving papers other than the assertion of permanence or lack thereof.

The court believes that the Johnson Declaration is sufficient to establish that defendants have abandoned the Afeela project. All existing reservation agreements have been cancelled and money refunded. There is no production or marketing of the vehicle and there are no retail locations. As to SHMA, which is the entity that was going forward with the Afeela project, the declaration establishes that it is getting rid of all of its assets and has laid off the majority of its workforce. 61% were laid off as of June 11, 2026, with an additional 28% being laid off as of August 1, 2026. At this time, Afeela has only a handful of employees—less than a dozen—and they are closing out the business. In light of the above, the case as originally brought is MOOT. But plaintiff, while acknowledging that the Afeela program has been mothballed at least, claims it is concerned that the program will come back and therefore wants a declaration for going forward. That strikes the court as an advisory opinion, and the court does not give those. There is no reason to believe that there are any current plans to bring the Afeela program back, or that if there are any plans, that it has been decided that the vehicle will not be sold using traditional means. At present, there is no actual controversy. (*Communities for a Better Environment v. State Entergy Resources Conservation & Development Commission* (2017) 19 Cal.App.5th 725.) Nor is the question whether SHMA is an “affiliate” live. SHMA is going out of business. It does not matter whether it

was an affiliate of anything or not. Nor
does the public interest exception apply.

That exception allows a court to rule on an otherwise moot or unripe question
if the issue is likely to recur and if the issue needs to be resolved. (Robinson v. U-Haul Co. (2016) 4
Cal.App.5th 304.) But the court has no
reason to believe that the situation will recur.

Accordingly, the motion is GRANTED WITHOUT LEAVE TO
AMEND. Defendant to prepare an order of
dismissal. As stated above, the order
should make it clear that the dismissal is not on the merits.